

Mohit Mittal And 3 Others vs State Of Up And 2 Others on 22 December, 2022

Author: Mahesh Chandra Tripathi

Bench: Mahesh Chandra Tripathi

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 47

Case :- CRIMINAL MISC. WRIT PETITION No. - 16569 of 2022

Petitioner :- Mohit Mittal And 3 Others

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Shivam Yadav,Akhilesh Singh

Counsel for Respondent :- G.A.,Rajeev Kumar Singh Parmar

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Mayank Kumar Jain,J.

Heard Shri Shivam Yadav, learned counsel for the petitioners, Shri Rajeev Kumar Singh Parmar, learned counsel for informant and learned A.G.A. for the State.

While entertaining the matter on 09.11.2022, the Court has proceeded to accord interim protection to the petitioners with following effect:-

"Heard Sri Shivam Yadav, learned counsel for the petitioners, learned counsel for the informant and learned A.G.A, for the State respondents.

The present writ petition has been preferred with the prayer to quash the impugned First Information Report dated 25.9.2022 registered as Case Crime No. 0436 of 2022, under Sections 420, 467, 468, 471 IPC, Police Station-Fatehgarh Kotwali, District-Fatehgarh, and for a direction to the respondents not to take any coercive measure against the petitioners in pursuance of impugned First Information Report.

Learned counsel for the petitioners submits that the first petitioner is husband of the informant and was working as Physiotherapist. The second petitioner is father-in-law and retired physician; the third petitioner is mother-in-law and house lady having PhD degree and fourth petitioner is sister-in-law and working in private sector at Lucknow since 2007. There is matrimonial dispute between the husband and wife, which had started after detection of brain tumor to the first petitioner. Instead of caring and helping him, the informant had deserted the first petitioner (husband). In spite of sincere efforts from the petitioners' side once the matrimonial dispute could not be resolved, the first petitioner had no other option except to move an application under Section 13-B of Hindu Marriage Act for dissolution of marriage. In the said proceeding the parties were agreed as per Clause 7 of the application that at the time of decree of divorce petition a total amount of Rs.12 lacs shall be given to the informant. Learned counsel for the petitioners, in this backdrop, states that till date the proceeding under Section 13-B of Hindu Marriage Act registered as Case Crime No. 47 of 2020 (Ashi Mittal Vs. Mohit Mittal) is pending consideration before the Principal Judge, Family Court. It is alleged that without finalisation of the said proceeding, in most arbitrary manner, present FIR has been lodged just to harass the petitioners and deliberately implicated all the family members. Learned counsel for the petitioners in support of his submissions has placed reliance on the judgments in *Geeta Mehrotra vs. State of U.P. and others*, 2012 (10) ADJ 464 and *Taramani Parakh vs. State of Madhya Pradesh and others*, (2015) 11 SCC 260.

Per contra, learned counsel for the informant has vehemently opposed the writ petition and submitted that no case is made out for interference in the matter. Admittedly the proceeding before the Principal Judge, Family Court is pending consideration but in spite of best efforts of the informant, the said proceeding has not been finalised on account of non-cooperation of the first petitioner.

Confronted with this, learned counsel for the petitioners submits that first petitioner is ready and willing to pay in terms of compromise as per application under Section 13-B of Hindu Marriage Act. Just to show his bonafide, the petitioners are ready to place on record a bank draft of Rs.6 lacs on the next date fixed in the matter.

On the request of learned counsel for the petitioners, put up this matter as fresh on 23.11.2022. On the next date, to show his bonafide, the petitioners shall place a bank draft of Rs.6 lacs in the name of the informant.

Till the next date of listing, no coercive action shall be taken against the petitioners pursuant to the aforesaid First Information Report subject to their cooperation in the investigation in question."

Consequently again on 29.11.2022 on the request of Shri Shivam Yadav, learned counsel for the petitioners, the case was passed over as he fairly stated that if one more opportunity is accorded, the earlier order dated 09.11.2022 shall be complied with. In this backdrop, the matter was adjourned and posted for 12.12.2022. On the said date also the matter was adjourned on the request of counsel for the petitioners and the interim order was extended.

Today when the matter is taken up, Shri Shivam Yadav, learned counsel for the petitioners states that in response to the aforesaid interim order, till date the amount could not be managed and deposited pursuant to directions issued by this Court by order dated 09.11.2022. He fairly submits that he has no further instructions and has no objection in case the writ petition is dismissed.

Learned counsel for the informant also not objected the said situation and submits that the FIR discloses commission of cognizable offence.

The correctness of the allegations would have to be tested on the basis of the materials collected during the course of investigation as by insertion of notification No.1058/79-V-1-19-1 (Ka)-20-2018 dated 6th June 2019 and therefore, in view of the law laid down by Hon'ble Supreme Court in the case of State of Haryana and others vs. Bhajan Lal and others, 1992 Supp. (1) SCC 335 and M/s Neeharika Infrastructure Pvt. Ltd. vs. State of Maharashtra, AIR 2021 SC 1918 and in Special Leave to Appeal (Crl.) No.3262/2021 (Leelavati Devi @ Leelawati & another vs. the State of Uttar Pradesh) decided on 07.10.2021, no case has been made out for interference with the impugned first information report.

Once the petitioners failed to comply with the earlier directions issued by this Court and perusal of record prima facie discloses commission of cognizable offence, Therefore, the writ petition is dismissed leaving it open for the petitioners to apply before the competent court for anticipatory bail/bail as permissible under law and in accordance with law.

It is made clear that we have not adjudicated the contentions raised by learned counsel for the petitioners and the same are left open for the petitioners to raise at an appropriate stage in an appropriate proceeding, in accordance with law.

Order Date :- 22.12.2022 A. Pandey